DEPARTMENT OF HEALTH &. HUMAN SERVICES

Public Health Service

Indian Health Service
Phoenix Indian Medical Center
4212 North 16th Street
Phoenix, Arizona 85016

Emily Drake, Esq.
Attorney
U.S. Office of Special Counsel
Email: edrake@osc.gov

Re: Continued and Escalating Retaliation – Pattern of Prohibited Personnel Practices in Phoenix Service Unit

June 26, 2025

Dear Ms. Drake,

Following my formal internal disclosures and the June 25, 2025, memorandum sent to Executive Leadership and the Governing Body—on which you were copied—I must report a continuation and escalation of retaliatory conduct against me.

The June 25 memorandum formally documented procedural violations of law and policy, including my unauthorized removal from the Phoenix Service Unit's (PSU) mandated policy approval workflow in my role as Policy & Procedure Nurse Consultant. At that time, Section E.6 of the Policy Management policy required my participation in the approval process for all new and revised documents. That removal, which occurred without amendment, justification, or process, directly followed protected disclosures I made regarding policy governance irregularities.

Rather than rectify this retaliatory exclusion, Executive Leadership formally amended the Policy Management policy on June 26, 2025—one day after OSC was notified—to remove my role from the required workflow. According to the PolicyStat revision history, this amendment was authored by Clinton Pope, Chief Quality Officer, and approved by Debra Ward Lund, Chief Executive Officer, without transparent review, justification, or consultation. The timing, sequence, and context clearly indicate retaliatory motive and continued retaliation.

These actions violate the Whistleblower Protection Act of 1989, codified at:

- 5 U.S.C. § 2302(b)(8) – prohibiting retaliation against an employee for disclosing information the employee reasonably believes evidence a violation of law, rule, or regulation; gross mismanagement; gross waste of funds; abuse of authority; or a substantial and specific danger to public health or safety; and
- 5 U.S.C. § 2302(b)(9) – prohibiting retaliation against an employee for exercising an appeal, grievance, or complaint right, testifying or cooperating with the Office of Special Counsel, or refusing to obey an order that would require a violation of law.

Pattern of Retaliation

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Importantly, this most recent act of retaliation is part of a pattern of adverse personnel actions against me that began when I was involuntarily removed from my position of record and reassigned to my current role in March 2023. That reassignment followed prior protected disclosures and raised significant due process and merit system concerns. The March 2023 reassignment, the May 25, 2025, removal from policy workflows, and the June 26, 2025 retaliatory amendment form a sustained sequence of personnel actions that violate federal law and whistleblower protections.

These acts, taken together, demonstrate an institutional response designed not to address legal noncompliance, but to silence and marginalize the protected role responsible for ensuring procedural integrity.

Requested Action

I respectfully request that the Office of Special Counsel:

1. Investigate the June 26, 2025, policy amendment as a retaliatory act in violation of 5 U.S.C. § 2302(b)(8) and (b)(9);
2. Consider this amendment in light of the ongoing pattern of reprisal beginning in March 2023.
3. Take any appropriate steps to protect my role, restore procedural integrity, and ensure institutional accountability.

Supporting Documentation Attached

1. June 25, 2025 Memorandum documenting procedural violations and initial retaliatory exclusion
2. Policy Management Policy (Current) reflecting June 26, 2025 amendment
3. PolicyStat Audit History showing the exact timing and authorship of the retaliatory change

I am fully available to assist the Office of Special Counsel, including providing sworn testimony or further documentary evidence as needed. Thank you for your ongoing commitment to protecting federal employees and enforcing the merit system principles.

Respectfully,

Kevin D. Turnage

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